

“(7) Where the person against whom the proceedings are to be taken is himself a trustee of a society or branch the proceedings may be brought by the other trustees or trustee of the society or branch.”

12. At the end of section one hundred and three of the principal Act the following paragraph shall be added :— Application to the Isle of Man.

(7) Any sum recoverable summarily as a civil debt shall be recoverable in accordance with the law and procedure in force in the Isle of Man for the recovery of civil debts.

13. At the end of section one hundred and six of the principal Act (which contains definitions) the following definition shall be added :— Definition of “signed.”

The expression “signed” in relation to a body corporate shall mean sealed.

14.—(1) This Act may be cited as the Friendly Societies Act, 1908, and the principal Act and this Act may be cited together as the Friendly Societies Acts, 1896 and 1908. Short title, construction, commencement, and printing.

(2) This Act shall come in operation on the first day of January nineteen hundred and nine.

(3) Every enactment and word which is expressed to be substituted for or added to any portion of the principal Act shall form part of that Act in the place assigned to it by this Act, and that Act, and all Acts, including this Act, which refer thereto shall, as from the commencement of this Act, be construed as if the said enactment or word had been originally enacted in the principal Act in the place so assigned, and, where it is substituted for another enactment or word, had been so enacted in lieu of that enactment or word, and the expression “this Act,” as used in the principal Act or this Act, shall be construed accordingly.

(4) A copy of the principal Act with every such enactment and word inserted in the place so assigned, and with the omission of the parts expressly repealed by this Act, and with the subsections and paragraphs numbered and lettered in manner directed by this Act, shall be prepared and certified by the Clerk of the Parliaments, and deposited with the rolls of Parliament; His Majesty's printer shall print in accordance with the copy so certified all copies of the principal Act which are printed after the commencement of this Act.

CHAPTER 33.

An Act to amend the Telegraph Acts, 1863 to 1907, with respect to the Construction and Maintenance of Telegraphic Lines for telephonic and other telegraphic purposes. [1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Use of land
near road for
telegraphic
line.

1. If the owner, lessee, or occupier of any hedge or bank which forms the boundary of any street or public road along which the Postmaster-General desires to construct or maintain or is constructing or maintaining a telegraphic line, or of any land (being within twenty feet of any such street or road and not being common land or land dedicated to the recreation of the public) which is not enclosed on the side of the street or road, refuses or fails to give his consent to the construction of the line on, over, along, or across the hedge, bank, or land, within one month after being required to do so by notice from the Postmaster-General, a difference shall be deemed to have arisen between the Postmaster-General and that owner, lessee, or occupier, and sections three, four, and five of the Telegraph Act, 1878, shall apply accordingly as if it were a difference arising under that Act.

41 & 42 Vict.
c. 76.

Flying wires
over land ad-
joining road.
26 & 27 Vict.
c. 112.
55 & 56 Vict.
c. 59.

2. Those provisions of section twenty-one of the Telegraph Act, 1863, which (as amended by section three of the Telegraph Act, 1892) are not of general application, shall be of general application, and extend to rural districts and to public roads as well as to streets; but, in the case of a street or public road in a rural district, the publication of notice required under section twenty-three of the Telegraph Act, 1863, shall be substituted for the publication of notice under section twenty-one of that Act.

Public recrea-
tion grounds.

3. Notwithstanding the provisions of this Act no telegraphic line shall be constructed on, over, along, or across any land dedicated to the recreation of the public, or any hedge or bank adjoining such land, without the consent of the person under whose control and management such land for the time being remains. Provided that if such consent is withheld or any condition is attached thereto to which the Postmaster-General objects, a difference shall be deemed to have arisen between the Postmaster-General and that person, and sections three, four, and five of the Telegraph Act, 1878, shall apply accordingly as if it were a difference arising under that Act.

Extension of
s. 2 of Tele-
graph Act, .
1892.
55 & 56 Vict.
c. 59.

4. The provisions of section two of the Telegraph Act, 1892, shall apply where, on the application of the Postmaster-General, the Railway and Canal Commission are satisfied, that owing to the refusal or failure of any person, being the occupier, lessee, or owner of any land or building, to consent to the construction or maintenance of a work by the Postmaster-General, telegraphic communication cannot be supplied to any district or place, except at unreasonable cost or on unreasonable conditions.

Lopping of
trees which
obstruct a tele-
graphic line on
a street or road.

5.—(1) Where any tree overhangs any street or public road and obstructs or interferes with the working of any telegraphic line constructed along that street or road or will obstruct or interfere with the working of any telegraphic line about to be so constructed, the Postmaster-General may give notice to the owner and to the occupier of the land on which the tree is growing, requiring the tree to be lopped so as to prevent the obstruction or interference.

(2) If within one month from the service of notice by the Postmaster-General the owner or the occupier of the land on which the tree is growing gives a counter-notice to the Postmaster-General objecting to the lopping of the tree, a difference shall be deemed to have arisen between the Postmaster-General and that owner or occupier, and sections four and five of the Telegraph Act, 1878, shall apply accordingly as if it were a difference under that Act.

(3) If on the expiration of one month after notice is given by the Postmaster-General under this section, neither the owner nor the occupier has complied with the notice, or given a counter-notice under this section, or if the authority determining a difference under this section make an order in that behalf, the Postmaster-General may himself cause the tree to be lopped, and section seven of the Telegraph Act, 1863 (which relates to compensation), shall apply to the exercise of that power by the Postmaster-General.

(4) The Postmaster-General shall issue instructions to his officers with a view to ensuring that trees shall be lopped in a husbandlike manner and so as to avoid injury to their growth.

6. Notwithstanding anything in the Railway and Canal Traffic Act, 1888, any difference directed to be determined by the Railway and Canal Commission under the Telegraph Acts, 1863 to 1907, or this Act, may in the discretion of the Commission be heard and determined by the two appointed Commissioners, whose order shall be deemed to be the order of the Commission.

Determination
of differences.
51 & 52 Vict.
c. 25.

7. The provisions of subsection two of section four of the Telegraph Act, 1892, shall be deemed to extend to telegraphs placed and maintained under a street or public road.

Extension of
s. 4 (2) of Tele-
graph Act,
1892.

8. Nothing in this Act shall apply to the undertaking of any canal company authorised by an Act of Parliament.

Saving for
canals.

9.—(1) In this Act any expressions to which a special meaning is attached under the Telegraph Acts, 1863 to 1907, or any of them, shall have the same respective meanings in this Act; and the expression "hedge" or "bank" includes any ditch adjoining to the hedge or bank and forming part of the boundary of the street or public road, as if it was part of the hedge or bank.

Interpretation,
notices, and
short title.

(2) Section twelve of the Telegraph Act, 1878 (which relates to the printing, authentication, and service of notices and other documents), shall apply for the purposes of this Act as it applies for the purposes of that Act.

(3) This Act may be cited as the Telegraph (Construction) Act, 1908, and may be cited with the Telegraph Acts, 1863 to 1907.

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